

corrective measures, has implemented new internal procedures to ensure compliance with the GDPR and to handle requests for access to personal data more efficiently in the future.”

2. The assessment of the complaint and the findings of the Authority.

The Authority has examined the documentation submitted and the observations made by the parties involved. It is noted that the complaint was filed on 01/12/2021, and the request for access to personal data was made under Article 15 of the Regulation. The Authority acknowledges that the Company did not respond within the timeframe established by Article 12, paragraph 3, of the Regulation, which constitutes a violation of the obligations imposed by the GDPR.

3. The decision of the Authority.

Considering the above, the Authority finds that the Company has violated Article 12, paragraph 3, and Article 15 of the Regulation by failing to provide a timely response to the request for access to personal data. Therefore, the Authority imposes an administrative fine on Amazon Italia Transport s.r.l. in accordance with Article 83 of the Regulation.

4. The fine.

The amount of the fine is set at €50,000 (fifty thousand euros), taking into account the nature, gravity, and duration of the infringement, as well as the mitigating factors presented by the Company regarding its good faith and the internal difficulties faced in processing the request.

5. Conclusion.

The Company is required to implement the necessary measures to ensure compliance with the GDPR and to prevent similar violations in the future. The Authority will monitor the situation and may take further action if necessary.

This decision is communicated to the parties involved and will be published in accordance with the provisions of the Regulation.

Rome, 16 November 2023

IL GARANTE PER LA PROTEZIONE DEI DATI PERSONALI

Prof. Pasquale Stanzone

President

improving its internal organization in order to respond as effectively and proactively as possible to access requests, is establishing a single central function for managing requests under Article 15 of the Regulation in the HR field (employees and former employees). This procedure includes an initial screening of the request, followed by its handling in a synergistic manner, involving both the central privacy function and the local HR functions. This will ensure better interdepartmental collaboration, ensuring that such events do not occur again in the future and consolidating the privacy by design and by default approach already adopted by the Company.

2. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

As a result of the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that the Company, as the data controller, has carried out certain processing operations related to the complainant that are not compliant with the regulations on personal data protection.

In this regard, it is noted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor."

On the merits, it emerged that the Company did not respond to the request to exercise rights, submitted by the complainant pursuant to Article 15 of the Regulation, except on 04/02/2022 and only following the filing of the complaint and the opening of the investigation by the Guarantor, sending him a copy of the personal data and the information related to the employment relationship with the party. The fulfillment thus occurred almost six months beyond the deadline set by the Regulation.

It should also be noted that the Company, during the investigation, stated that it did not provide a timely response to the aforementioned request, also due to the vastness and generality of the information requested, which prevented it from specifying the response.

In this regard, it is observed that the Guidelines on the right of access, approved by the EDPB on 28/03/2023, clarify that "a data controller who processes a large amount of information relating to the data subject may ask the data subject to specify the information or the processing to which the request refers before the information is provided" (par. 2.3.1), in accordance with what is also established in Recital 63 of the Regulation.

Therefore, in light of the declared difficulty in fulfilling the request to exercise rights within the timeframes set by the regulations, the Company did not take advantage of the option granted by the Regulation to request the appropriate specifications from the data subject.

Nor did it inform the applicant of the reasons for the delay, thereby failing to comply with the provision of Article 12, par. 3, of the Regulation, which states that "this period [thirty days from receipt of the request] may be extended by two months, if necessary, taking into account the complexity and number of requests. The data controller informs the data subject of such extension and the reasons for the delay, within one month of receiving the request."

3. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, par. 2, of the Regulation.

For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the archiving of this procedure, as none of the cases provided for by Article 11 of the Guarantor Regulation No. 1/2019 apply.

The processing carried out by the company, concerning the failure to respond to the access request submitted by the complainant, is indeed unlawful, as outlined above, in relation to Articles 12 and 15 of the Regulation.

Therefore, in light of the corrective powers attributed by Article 58, par. 2 of the Regulation, an administrative pecuniary sanction is imposed pursuant to Article 83 of the Regulation, proportionate to the circumstances of the specific case (Article 58, par. 2, lett. i) Regulation).

4. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, par. 2, lett. i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Article 58, par. 2, lett. i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, par. 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981).

The violation, ascertained in the terms outlined in the reasoning, cannot be considered "minor," taking into account the nature, severity, and duration of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (cons. 148 of the Regulation).

With reference to the elements listed in Article 83, par. 2, of the Regulation for the purpose of applying...

of the administrative pecuniary sanction and its relative quantification, considering that the sanction must "in any case [be] effective, proportionate, and dissuasive" (art. 83, par. 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been considered:

- in relation to the nature, severity, and duration of the violation, the nature of the violation concerning the exercise of the rights of the interested party and the delay in responding to the exercise of those rights have been deemed relevant;
- with reference to the negligent or intentional nature of the violation and the degree of responsibility of the holder, account has been taken of the conduct of the Company, which promptly complied with the indications provided during the proceedings, as well as the circumstance that the violation concerned only one interested party;
- the cooperation provided during the investigation and the adjustments made in the perspective of

privacy by design and by default.

It is also considered that the following factors are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation), primarily the economic conditions of the offender, determined based on the revenues achieved by the Company concerning the ordinary financial statements for the year 2022. Lastly, account is taken of the amount of sanctions imposed in similar cases.

In light of the above elements and the evaluations made, it is deemed appropriate, in this specific case, to apply to Amazon Italia Transport s.r.l. the administrative sanction of payment of an amount equal to €40,000.00 (forty thousand).

In this context, it is also considered, in view of the type of violations identified that concerned the exercise of the rights of the interested party, that pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, the publication of this provision on the Garante's website should proceed.

It is also believed that the conditions of art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE Garante

notes the illegality of the processing carried out by Amazon Italia Transport s.r.l., represented by the legal representative pro tempore, with registered office at Viale Monte Grappa 3/5 - 20124 Milan (MI), Tax Code 09598330968, pursuant to art. 143 of the Code, for the violation of arts. 12 and 15 of the Regulation;

ORDERS

pursuant to art. 58, par. 2, lett. i), of the Regulation, Amazon Italia Transport s.r.l. to pay the sum of €40,000.00 (forty thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

therefore the same Company to pay the aforementioned sum of €40,000.00 (forty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of Law no. 689/1981. It is reminded that the offender retains the right to settle the dispute by paying – always according to the methods indicated in the annex - an amount equal to half of the imposed sanction, within the term provided for in art. 10, paragraph 3, of Legislative Decree no. 150 of 1.9.2011 for the submission of the appeal as indicated below (art. 166, paragraph 8, of the Code);

DISPOSES

the publication of this provision on the Garante's website pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation no. 1/2019, and believes that the conditions of art. 17 of Regulation no. 1/2019 are met.

Pursuant to art. 78 of the Regulation, as well as arts. 152 of the Code and 10 of Legislative Decree no. 150/2011, against this provision an appeal may be made to the ordinary judicial authority, with a petition filed with the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, November 16, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE DEPUTY SECRETARY GENERAL

Filippi